
2:00 PM **LINE 5**

24-CLJ-07838

CAPITAL ONE N.A. VS. ERIN K SULLIVAN

CAPITAL ONE N.A.
ERIN K. SULLIVAN

ALEXANDER BALZER CARR
PRO PER

PLAINTIFF'S AMENDED MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS
BE DEEMED ADMITTED

TENTATIVE RULING:

Capital One, N.A.'s Amended Motion for Order that Matters in Request for Admission of Truth of Facts Be Deemed Admitted, Set One, is **GRANTED**.

Plaintiff has not provided the correct address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff's counsel, Gregory Parks, states in his declaration that on January 7, 2025 plaintiff served its Requests for Admissions, Set One, on defendant by mail. (Parks Decl., ¶ 2, and exh. 1.) Mr. Parks further declares that "[p]laintiff has received no response to these requests for admissions." (*Id.*, ¶ 3.) "Therefore, plaintiff requests that the truth of facts specified be deemed admitted." (Mot., at p. 4.)

Code of Civil Procedure, section 2033.280, subdivision (b), provides that if a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. If the moving party makes a request for an order deeming responses admitted the court is required to grant such motion unless it finds that before the hearing on the motion the party to whom the requests for admission have been directed has served a proposed response to the requests for admission that is in substantial compliance with Code of Civil Procedure, sections 2033.210–2033.230. (Code Civ. Proc. § 2033.280, subd. (c).)

It is well-settled that once a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221.) To do so, the responding party must affirmatively show that the burden of responding would be so great, and the benefit of the information sought would be so minimal, that it would defeat the ends of justice to require the party to answer. (*Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.)

Defendant Erin K. Sullivan did not request an extension, failed to serve anything by the response deadline, and to date has served no responses. Nor has she filed a brief in opposition to the instant motion. In the complete absence of Sullivan's response and on the presence of plaintiff's request, the court must grant the motion to deem responses to the requests for

admission, set one, as admitted is **GRANTED**. The genuineness of any documents and the truth of any matters in plaintiff's Requests for Admission, Set One, are deemed admitted

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 6**

25-CIV-00298

GREGORY P. MANDANIS VS. CITY OF FOSTER CITY, ET AL

GREGORY P. MANDANIS
CITY OF FOSTER CITY

PRO PER
CAROLINE E. ROGERS

DEFENDANT CITY OF FOSTER CITY'S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

The City of Foster City's unopposed Motion for Judgment on the Pleadings is **DENIED without prejudice.**

Defendant served its motion by email, notwithstanding that the court's file does not indicate that the pro per plaintiff has agreed to accept service by email. Mamdanis has not responded to the motion. Accordingly, there is an insufficient showing that Mamdanis has received notice of the motion. It thus appears the court "lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.